



TEXAS CEMETERY BROKERS

Exclusive Right-to-Sell Agreement *and Instruction to Broker*

This Exclusive Right-to-Sell Agreement and Instruction to Broker (this "Agreement") is made effective as of the date of the last signature below (the "Effective Date"), by and between:

Broker: Texas Cemetery Brokers ("Broker"), a Texas cemetery interment-rights brokerage, and

Seller (the "Seller"):

SELLER'S NAME

ADDRESS

CITY / STATE / ZIP

TELEPHONE

EMAIL

The interment rights listed for sale, described as (the "Interment Property"):

CEMETERY

NUMBER OF PLOTS / SPACES

PLOT(S) DESCRIPTION &
LOCATION

Agreement Option Selection

Instructions: Seller must check ONE box below for the desired listing option. The option selected determines the upfront fee and cancellation terms in Sections 3.4 and 3.5. No listing option changes the Commission in Section 2.1.



☐ **Option 1 — Starter \$0 upfront.** No upfront fee. If Seller cancels this Agreement before the third anniversary of the Commencement Date (other than upon a sale), an early cancellation fee of \$299 applies.

☐ **Option 2 — Pro \$99 one-time upfront fee (non-refundable).** Includes direct outreach of the listing to funeral homes, mortuaries, and family counselors in the cemetery's market area. Seller may cancel at any time without a cancellation fee.

☐ **Option 3 — Featured \$299 one-time upfront fee (non-refundable).** Includes everything in Pro, plus paid digital advertising targeted to the listing and priority placement in Broker's distribution to funeral homes and counselors. Seller may cancel at any time without a cancellation fee.

SECTION 1

Authorized Sale Price and Advance Authorization to Close

1.1. Authorized Minimum Gross Sale Price. The Seller authorizes the Broker to sell the Interment Property at a gross sale price (the "Gross Sale Price") equal to or greater than the following minimum (the "Authorized Minimum Price"):

AUTHORIZED MINIMUM PRICE \$ _____ per plot/space (\$ _____ total)

SELLER INITIAL HERE _____

1.2. Advance Authorization; No Further Approval Required. A significant share of cemetery resales are at-need purchases in which the buyer must complete a transfer within days or even hours. Accordingly, the Seller hereby grants the Broker advance authorization to accept an offer, execute the sale, and complete the transfer of the Interment Property at any Gross Sale Price equal to or greater than the Authorized Minimum Price, without further consultation with, or approval or signature from, the Seller at the time of sale. The Broker shall have no authority to sell below the Authorized Minimum Price without the Seller's prior written consent.

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1.3. Seller's Proceeds. Upon closing, the Seller shall receive the Gross Sale Price actually obtained, less the Broker's Commission described in Section 2.1 (the "Net Proceeds"). If the Interment Property sells above the Authorized Minimum Price, the excess is included in the Gross Sale Price and increases the Seller's Net Proceeds on the same terms. At the Authorized Minimum Price, the Seller's Net Proceeds equal eighty-five percent (85%) of that price.

1.4. Payment Timeline. The Broker shall remit the Net Proceeds to the Seller within thirty (30) calendar days after the Cemetery Authority's completion of the transfer of title, by check to the Seller's address of record or by another payment method agreed in writing. The Seller shall provide signed written instructions identifying the exact party or parties to whom the Net Proceeds are to be paid (the "Remittance Instructions").



1.5. Closing Statement. At or promptly after closing, the Broker shall provide the Seller with a written closing statement showing the Gross Sale Price, the Commission, and the Net Proceeds.

1.6. Installment Buyers. If a qualified buyer requires an installment or payment plan, the Broker may, at its election, pay the Seller the full Net Proceeds calculated at the applicable Gross Sale Price and assume the installment risk itself. In that event the Seller shall be paid on the timeline in Section 1.4 and shall have no further interest in the buyer's installment payments.

SECTION 2

Broker's Compensation — Full Disclosure

2.1. Commission. The Broker's commission is fifteen percent (15%) of the Gross Sale Price (the "Commission"), deducted from the Gross Sale Price at closing. Except for the upfront listing fee (if any) selected in the Agreement Option Selection box and the buyer-paid charges disclosed in Section 2.2, the Broker charges the Seller no other fees.

THE SELLER'S ATTENTION IS SPECIFICALLY DIRECTED TO THIS SECTION

2.2. Buyer-Paid Charges — Additional Broker Compensation. In addition to the Gross Sale Price, the buyer of the Interment Property will pay: (a) all fees imposed by the Cemetery Authority in connection with the transfer (such as transfer, quitclaim, documentation, and endowment or perpetual care fees), which are set by the Cemetery Authority and are not Broker compensation; and (b) the Broker's own buyer-side charges, which may include transaction, processing, marketing, referral-coordination, financing, showing, and similar service fees (collectively, the "Buyer-Paid Broker Charges").

THE SELLER UNDERSTANDS, ACKNOWLEDGES, AND CONSENTS THAT: (i) the Buyer-Paid Broker Charges are additional compensation and profit to the Broker, over and above the Commission; (ii) the Buyer-Paid Broker Charges may be substantial and, together with cemetery-imposed fees, may cause the buyer's total cost to materially exceed the Gross Sale Price — in some transactions by fifty percent (50%) or more of the Gross Sale Price; (iii) the Buyer-Paid Broker Charges do not reduce the Seller's Net Proceeds and are not owed by the Seller in any circumstance; and (iv) the Broker is acting as a compensated intermediary receiving payment from both sides of the transaction, and the Seller consents to that dual compensation.

The Broker shall disclose all Buyer-Paid Broker Charges to the buyer in writing, itemized, before the buyer becomes obligated to pay them. The Broker shall comply with all laws applicable to fee disclosure in the jurisdiction of the transaction.

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2.3. Sale Above the Authorized Minimum. The Broker will pursue the highest Gross Sale Price reasonably obtainable under prevailing market conditions. Nothing in this Agreement entitles the Broker to retain any portion of the Gross Sale Price other than the Commission. For the avoidance of doubt, the Buyer-Paid Broker Charges described in Section 2.2 and all other buyer-paid fees collected by the Broker are earned by, belong solely to, and are retained entirely by the Broker; the Seller has no right to, claim on, or interest in any portion of them.



2.4. Protection Period (90-Day Tail). If, within ninety (90) days after termination or expiration of this Agreement, the Interment Property is sold or transferred to a buyer introduced to the Interment Property by the Broker during the Term, the Broker shall be entitled to the Commission calculated on that sale's gross price. This Section does not apply if the Interment Property is relisted with another licensed broker after termination.

2.5. Seller-Procured Sale During the Term — Liquidated Damages. This is an exclusive right-to-sell agreement. The parties acknowledge that the Broker's expected compensation from a sale includes both the Commission (Section 2.1) and the Buyer-Paid Broker Charges (Section 2.2), and that if the Interment Property is sold or transferred during the Term by the Seller or by any party other than the Broker (excluding transfers by inheritance or operation of law), the Broker is deprived of both, in amounts that are difficult to estimate at the time of contracting. Accordingly, in the event of such a sale or transfer, the Seller shall pay the Broker, as liquidated damages and not as a penalty, an amount equal to thirty percent (30%) of the greater of (a) the actual gross price of that sale or (b) the Authorized Minimum Price. The parties agree this amount is a reasonable forecast of the Broker's combined seller-side and buyer-side compensation lost, and is the Broker's sole monetary remedy for a Seller-procured sale.

SECTION 3

Term, Termination, and Exclusivity

3.1. Term. This Agreement begins on the Effective Date. The service term (the "Term") commences on the date the Broker confirms in writing its receipt of all Required Documents under Section 5 (the "Commencement Date") and continues for three (3) years thereafter, unless earlier terminated under this Section 3.

3.2. Automatic Termination on Sale. This Agreement terminates automatically upon transfer of title to all of the Interment Property to a buyer or buyers and payment of the Net Proceeds to the Seller.

3.3. Grant of Exclusive Right. The Seller grants the Broker the exclusive right and authority to market and sell the Interment Property during the Term. If any prospective buyer contacts the Seller directly, the Seller shall refer that party to the Broker.

3.4. Seller's Right to Terminate. The Seller may terminate this Agreement at any time on ten (10) days' written notice to the Broker. If the Seller selected Option 1 (Starter) and terminates before the third anniversary of the Commencement Date, the \$299 early cancellation fee applies; under Options 2 and 3 no cancellation fee applies. If, at the time the Seller's notice is received, the Broker has a bona fide written offer at or above the Authorized Minimum Price from a qualified buyer, termination takes effect only after that pending transaction either closes or fails.

3.5. Broker's Right to Terminate. The Broker may terminate this Agreement at any time on ten (10) days' written notice. If the Broker terminates for reasons other than the Seller's material breach, the Broker shall refund any upfront listing fee paid by the Seller, and no cancellation fee shall apply.

3.6. Effect of Termination. Upon termination, the advance authorization in Section 1.2 and any power of attorney provided under Section 5.2 are revoked, except as needed to complete a transaction pending under Section 3.4, and except for the Protection Period in Section 2.4, which survives.

SECTION 4

Seller Warranties and Duties

4.1. Warranty of Ownership. The Seller warrants that the Seller's ownership of the Interment Property is complete and accurate as disclosed, free of undisclosed ownership interests, and that the Seller has disclosed the names and identities of all legal owners, co-owners, heirs, and spouses whose joinder or consent is necessary to transfer the Interment Property.

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4.2. Warranty of Plot Condition. The Seller warrants that the Interment Property has not been used for any interment and has not been the subject of any disinterment, except as disclosed in writing to the Broker before the Effective Date.

SELLER INITIAL HERE _____

4.3. Warranty of Capacity. The Seller warrants that the Seller has full legal authority, capacity, and competency to enter into and perform this Agreement.

4.4. Duty to Disclose Changes. The Seller shall promptly notify the Broker in writing of any material change to the ownership, legal status, or condition of the Interment Property, or of any other known impediment to transfer, including marriage, divorce, death of a co-owner, or discovery of an heir or claimant.

4.5. Division of Multiple Plots. If the Interment Property comprises multiple plots or spaces, the Seller authorizes the Broker to sell them individually or in any combination, at or above the Authorized Minimum Price per plot, to one or more buyers.

4.6. Liability for Breach. The Seller is responsible for costs, fees, or damages actually incurred by the Broker or a buyer as a direct result of the Seller's breach of a warranty in this Section 4 or failure to disclose an impediment to transfer. Nothing in this Section limits any defense available to the Seller at law.

4.7. Duty to Maintain Current Contact Information. The Seller shall keep the Broker informed of the Seller's current mailing address, telephone number, and email address at all times during the Term and until the Net Proceeds are paid in full, and shall notify the Broker in writing within fifteen (15) days of any change — including any move or change of mailing address, so that any Net Proceeds check and other deliveries reach the Seller. The Broker's delivery of notices, documents, or a Net Proceeds check to the Seller's last address of record constitutes valid delivery, and the Broker is not responsible for delays or losses caused by the Seller's failure to provide updated contact information.

SECTION 5

Documentation and Limited Power of Attorney

5.1. Required Documents. The Seller shall provide the Broker with the documentation reasonably required by the Broker or the Cemetery Authority to complete a transfer (the "Required Documents"), which may include owner identification, original deed(s) or certificate(s) of interment rights (or a notarized affidavit of lost deed), death certificates, marriage certificates, and similar instruments. The Seller shall deliver the Required Documents within forty-five (45) days after the Effective Date; if they are not received within that period, the Broker may declare this Agreement void on written notice, in which case any upfront listing fee is refunded and no cancellation fee applies.



5.2. Limited Special Power of Attorney. Where the Cemetery Authority requires it, the Seller shall execute and have notarized the Broker's standardized Special Power of Attorney. The Special Power of Attorney shall be strictly limited to executing the sale and transfer of the described Interment Property at or above the Authorized Minimum Price, shall confer no other rights, and is revoked automatically upon termination or expiration of this Agreement (subject to Section 3.6). If a Special Power of Attorney or any other executed instrument is rejected by the Cemetery Authority, is found defective, expires, or otherwise fails to accomplish its purpose, the Seller shall promptly execute (and, where required, notarize) a corrected or replacement instrument upon the Broker's request, at no charge to the Broker.

5.3. Ongoing Cooperation. The Seller shall cooperate promptly and in good faith to correct document deficiencies, clerical errors, or name mismatches, and to satisfy any additional requirements of the Cemetery Authority arising before the final transfer of title, and shall provide any additional documentation reasonably requested by the Broker or the Cemetery Authority to market, sell, or transfer the Interment Property.

5.4. Seller's Own Costs. The Seller bears the Seller's own out-of-pocket costs of performing under this Agreement (for example, notary fees, document procurement costs, and fees for the Seller's own professional advisors).

SECTION 6

Broker's Duties

6.1. Marketing and Diligence. The Broker shall use commercially reasonable efforts to market the Interment Property, respond to inquiries, negotiate with prospective buyers, prepare transaction documentation, and coordinate the transfer with the Cemetery Authority, in accordance with the listing option selected by the Seller.

6.2. Honest Dealing. The Broker shall deal honestly and fairly with the Seller and with buyers, shall present accurate information about the Interment Property, and shall not misrepresent the Seller's proceeds, the buyer's total cost, or the nature of any fee.

6.3. No Guarantee of Sale. The cemetery resale market is illiquid; for some properties no buyer exists at any price within the Term. The Broker cannot and does not guarantee a sale, a timeline to sale, or any particular Gross Sale Price above the Authorized Minimum Price.

6.4. Confidentiality. The Broker shall use commercially reasonable efforts to keep the Seller's personal information confidential, disclosing it only as needed to complete the transaction (including to the Cemetery Authority) or as required by law.

SECTION 7

Liability and Risk Allocation

7.1. Third-Party Errors. The Broker is not liable for claims, losses, or damages caused by the error, negligence, misconduct, or non-performance of the Cemetery Authority or another third party whose records, fees, or actions are outside the Broker's control, provided the Broker has exercised reasonable care in its own performance.

7.2. Limitation of Liability. Except for the Broker's fraud, willful misconduct, gross negligence, or failure to remit Net Proceeds owed under Section 1, the Broker's aggregate liability to the Seller under this Agreement shall not exceed the greater of (a) the amounts paid by the Seller to the Broker under this Agreement and (b) the



Commission received or receivable by the Broker on the sale of the Interment Property. Neither party is liable to the other for indirect, incidental, consequential, or punitive damages.

7.3. Indemnity for Division of Proceeds. The Seller shall indemnify and hold harmless the Broker from claims by co-owners, heirs, or other third parties concerning the division or distribution of Net Proceeds paid in accordance with the Seller's Remittance Instructions.

7.4. Finality of Transfer. The sale and transfer of the Interment Property is final upon the Cemetery Authority's completion of the transfer of title. The Broker's obligations conclude upon completion of the transfer and payment of the Net Proceeds, except for obligations that expressly survive.

SECTION 8

Dispute Resolution; Governing Law

8.1. Mediation First. Before filing suit, the parties shall submit any dispute arising out of or relating to this Agreement to good-faith, non-binding mediation in the county of the Broker's principal office in Texas, with the mediator's fee split equally.

8.2. Governing Law; Venue. This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-laws rules. Exclusive venue for any suit lies in the state courts of the county of the Broker's principal office in Texas, except that either party may bring a qualifying claim in small claims court.

8.3. Attorney's Fees. If the Broker prevails in any litigation or proceeding to enforce this Agreement, the Seller shall pay the Broker's reasonable attorney's fees and costs. In all other cases each party bears its own attorney's fees and costs, except to the extent applicable law provides otherwise and cannot be varied by agreement.

8.4. Limitations Period. Any claim arising out of or relating to this Agreement must be commenced within two (2) years after the cause of action accrues, unless a longer period is required by applicable law that cannot be shortened by agreement.

8.5. Class Action Waiver. ALL CLAIMS AND DISPUTES ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL BE BROUGHT AND RESOLVED IN THE PARTIES' INDIVIDUAL CAPACITIES ONLY. TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE SELLER WAIVES ANY RIGHT TO BRING, JOIN, OR PARTICIPATE IN ANY CLASS, COLLECTIVE, CONSOLIDATED, OR REPRESENTATIVE ACTION AGAINST THE BROKER, AND NO PROCEEDING UNDER THIS AGREEMENT MAY BE COMBINED WITH THE CLAIMS OF ANY OTHER PERSON WITHOUT THE WRITTEN CONSENT OF BOTH PARTIES.

SECTION 9

General Provisions

9.1. Entire Agreement; Amendment. This Agreement is the entire agreement between the parties concerning its subject matter and supersedes prior oral or written understandings. It may be amended only in a writing signed by the Seller and an authorized officer of the Broker. The Seller acknowledges and agrees that the Seller has not relied on, and the Broker is not bound by, any oral or written statement, promise, estimate, valuation, marketing material, or representation not expressly set out in this Agreement.

9.2. Severability. If any provision of this Agreement is held unenforceable, the remainder continues in effect, and the unenforceable provision shall be reformed to the minimum extent necessary to make it enforceable.



9.3. Notices. Notices must be in writing and are effective when delivered by hand, by email to the addresses stated in this Agreement (with confirmation of transmission), or three (3) days after deposit in the U.S. mail, certified, postage prepaid.

9.4. Electronic Signatures; Counterparts. This Agreement may be executed electronically and in counterparts; an electronic, digital, or facsimile signature has the same effect as an original.

9.5. Payment Check Claims. The Seller shall notify the Broker of the loss or theft of a Net Proceeds check within one hundred eighty (180) days of its issue date so a replacement can be issued; the Broker may require a stop-payment confirmation before reissuing.

9.6. Construction. This Agreement shall be construed fairly and not strictly against either party. Headings are for convenience only.

9.7. Time of the Essence. Time is of the essence for the deadlines stated in this Agreement.

SECTION 10

Professional Advice Disclaimer

THE SELLER IS STRONGLY ADVISED TO SEEK THE ADVICE OF INDEPENDENT PROFESSIONALS — INCLUDING LEGAL COUNSEL AND ALTERNATIVE VALUATIONS OR OFFERS — REGARDING THE TERMS OF THIS AGREEMENT AND THE MARKET VALUE OF THE INTERMENT PROPERTY BEFORE SIGNING. The Broker does not provide legal, tax, or financial advice.

By signing below, the parties acknowledge that they have read, understand, and agree to all terms and conditions of this Agreement, and have initialed where required.

SELLER

SELLER PRINTED NAME

SIGNATURE

DATE



BROKER — TEXAS CEMETERY BROKERS

REPRESENTATIVE NAME

Alexander M. James

SIGNATURE

DATE

July 16, 2026

